

1. Line 248 through 257:

248 **PART 2. Disposal of Public Property**

249 **11-1-201** Definitions.

250 As used in this part:

251 (1) (a) "Dispose" means to §→ :

251a (i) ←§ sell, convey, donate, or otherwise permanently change the

252 ownership of real property §→ [{·}];

252a (ii) enter into a joint venture that gives a private entity the right to use, possess, or

252b occupy real property; or

252c (iii) give a private entity the right to use, possess, or occupy real property under a

252d lease agreement with an initial term of more than 10 years. ←§

253 (b) "Dispose" does not include

253a §→ (i) ←§ an exchange of a parcel of real property for another

254 parcel of real property described in Subsection 11-1-205(2) §→ [{·}];

254a (ii) the creation, transfer, or use of an easement, unless the easement has a fair

254b market value of more than 50% of the fair market value of the affected real

254c property; or

254d (iii) giving a private entity the right to use, possess, or occupy real property under

254e a lease agreement with an initial term of 10 years or less. ←§

255 (2) "Governing body" means:

256 (a) for a municipality or a county, the legislative body;

257 (b) for an agency, the agency board;

2. Line 281 through 286:

281 (i) any statutory requirements specific to the local governmental entity and the local

282 governmental entity's public property; and

283 (ii) the applicable requirements of this part.

284 (2) §→ [{In}] **Subject to Subsection (4) in** ←§ making a determination on whether

284a public property constitutes a significant parcel:

285 (a) a municipality shall apply the municipality's ordinance described in Subsection

286 10-8-2(4);

3. Line 293 through 295d:

293 (3) If a local governmental entity does not define significant parcel in a local ordinance or
294 resolution, "significant parcel" means real property that has an estimated fair market
295 value of \$500,000 or more.
295a §→ (4) A municipality or county may not establish by ordinance or resolution a
295b definition of significant parcel that would result in real property with an estimated fair
295c market value of \$500,000 or more not qualifying as a significant parcel under the
295d ordinance or resolution. ←§

4. Line 301 through 318:

301 public property on the local governmental entity's website or a real estate offering
302 website for a minimum of 45 consecutive days;
303 (b) post a physical sign on the public property indicating that:
304 (i) the public property is §→ **available** ←§ for sale §→ **, lease, or joint venture** ←§ ; and
305 (ii) offers §→ [{**on the public property**}] ←§ may be made to the local governmental
305a entity; and
306 (c) announce the local governmental entity's intent to dispose of the public property
307 during a public meeting.
308 (2) A local governmental entity may offer the public property §→ **that is available** ←§ for
308a sale §→ , ←§ §→ **lease, or joint venture** ←§ on one or more real
309 estate offering websites.
310 (3) Before disposing of public property that the local governmental entity has not classified
311 as a significant parcel, a local governmental entity shall post a physical sign on the
312 public property indicating that:
313 (a) the public property is §→ **available** ←§ for sale §→ **, lease, or joint venture** ←§ ; and
314 (b) offers §→ [{**on the public property**}] ←§ may be made to the local governmental entity.
315 (4) Nothing in this part diminishes a local governmental entity's discretion to determine the
316 terms and conditions of §→ [{**the final**}] **a** ←§ disposition of public property in
316a accordance with the
317 local governmental entity's relevant adopted ordinances or policies and other applicable
318 law.

5. Line 345 through 354:

345 (b) a local governmental entity offering public property back to the party the local
346 governmental entity received the public property from, if required to do so by another
347 provision of law;

348 (c) a local governmental entity conveying public property to another $\hat{S} \rightarrow [\{ \text{local} \}] \leftarrow \hat{S}$
348a governmental
349 entity;
350 (d) $\hat{S} \rightarrow [\{ \text{easements; or} \}] \text{the sale of a cemetery plot; or} \leftarrow \hat{S}$
351 (e) $\hat{S} \rightarrow [\{ \text{a lease at an airport for a term of less than 10 years.} \}] \text{the abandonment or}$
351a vacation of a public street in accordance with the requirements of Section 10-20-208,
351b 17-79-208, or 72-5-105. $\leftarrow \hat{S}$
352 (2) (a) A political subdivision that exchanges real property for another parcel of real
353 property is not required to comply with the provisions of this part if:
354 (i) both parties to the exchange are political subdivisions, both political subdivisions